



File No.: EXP202206596

RESOLUTION OF FILE OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for Data Protection and based on the following:

FACTS

FIRST: On May 10, 2022, a complaint was filed with the Spanish Agency for Data Protection against CAIXABANK, S.A. with NIF A08663619 (hereinafter, the complained party).

The reasons for the complaint are as follows:

The complainant states that a third party has used their personal data to contract a loan, as well as to open an associated current account, without their consent. They provide a police report, a complaint to the OMIC, and a complaint to the complained banking entity.

Relevant documentation provided by the complainant:

The complaint consists of two almost identical entries that will be explained later. In them, the following is provided:

.- October 26, 2021: Police report. (Pages 18 and 17, disordered).

.- October 26-27, 2021: Email sent to the complained party in which the police report is forwarded. (Page 10)

.- November 11, 2021: Exchange of emails from the National Police. The Police sends the complainant a copy of the "fraudulent" ID and the account number. (Page 11)

.- November 30, 2021: Complaint filed with OMIC against Bankia, following the police report.

Duplicated document (Pages 8 and 9)

.- November 30, 2021: Date of transfer to Bankia of the complaint to OMIC (Claim 13L026/665/2021/1-IM0) (Page 19)

.- December 13, 2021: Date of delivery of the transfer to the complained party

.- February 16, 2022: Date of outgoing communication of claim 13L026/665/2021/1-IM0 to the customer service of the complained party. In this document, they are urged to provide evidence of what was requested in the communication received on December 13, 2021. (Page 22)

.- April 8, 2022: Referral from OMIC to the Bank of Spain, requesting information. (Page 3)

.- May 5, 2022: Request for filing of proceedings from OMIC to the Bank of Spain. (Entry 2, Page 23)

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), this complaint was forwarded to the complained party for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The transfer, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was recorded on June 10, 2022, as stated in the certificate in the file.

On July 18, 2022, after requesting an extension of the deadline to submit a response, a written response was received by this Agency indicating, in summary, the following:

.- That their systems show a client named A.A.A. (the second surname of the complainant is ***A), with an ID number equal to the ID number provided by the complainant in their complaint (***NIF.1).

.- They provide a digitized copy of the National Identity Document with which the client, A.A.A., contracted certain products at BANKIA, now CAIXABANK.

Upon examining the IDs, it is noted that there are certain similarities and differences between them:

** - On the front, both the document number and name, first surname, and date of birth match. The second surname is almost identical, simply adding an "S".

** - On the back, only the province of both the place of birth and residence matches.

.- That the ID has been deactivated in the credit information systems and the complainant has been informed in this regard.

THIRD: On August 10, 2022, in accordance with Article 65 of the LOPDGDD, the complaint was admitted for processing.

FOURTH: The General Subdirectorate for Data Inspection proceeded to carry out preliminary

investigative actions to clarify the facts in question, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section two, of the LOPDGDD, being aware of the following aspects:

On April 17, 2023, a request for information was made to the complained party requesting information on all data held in their entity associated with the complainant, as well as the list of all products contracted at Bankia, now CaixaBank, in the name of the complainant since January 1, 2018. The complained party provided all this information in the allegations submitted to this Agency on May 12, 2023.

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3/6

In the document Doc_1 provided by the responding party, it is observed that, except for the DNI number, the name, and the first surname, the rest of the personal data associated with the claiming party found in their systems do not match the actual data of the claiming party.

Regarding the date of registration of the contracted products, it is noted that all were contracted during the year 2018.

.- Doc 2.1

Loan ***REFERENCE.1

Linked account: ***REFERENCE.2

Status: canceled

Establishment: July 20, 2018

.- Doc 2.2

Current account ***REFERENCE.2.

CCC of said account: ***REFERENCE.3

Opening: January 22, 2018

.- Doc 2.3

Debit card ***REFERENCE.4 associated with account ***REFERENCE.2, pending activation.

Registration: January 22, 2018

.- Doc 2.4

Digital banking ***REFERENCE.5

Registration: January 22, 2018

LEGAL GROUNDS

I

Competence

In accordance with the functions conferred to each supervisory authority by Article 57.1 a), f), and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and guarantee of digital rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative proceedings.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

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4/6

II

Security of processing

Article 32 of the GDPR stipulates the following:

"1. Taking into account the state of the art, the costs of implementation, and the nature, scope, context, and purposes of the processing, as well as the risks of varying likelihood and severity for the rights and freedoms of natural persons, the controller and the processor shall implement appropriate technical and organizational measures to ensure a level of security appropriate to the risk, which may include, among others:

- a) the pseudonymization and encryption of personal data;
- b) the ability to ensure the ongoing confidentiality, integrity, availability, and resilience of processing systems and services;
- c) the ability to restore the availability and access to personal data promptly in the event of a physical or technical incident;
- d) a process for regularly testing, assessing, and evaluating the effectiveness of technical and organizational measures to ensure the security of processing.

2. In assessing the adequacy of the level of security, particular consideration shall be given to the risks presented by the processing of data, in particular as a consequence of the accidental or unlawful destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data.

3. Adherence to an approved code of conduct pursuant to Article 40 or to an approved certification mechanism pursuant to Article 42 may serve as an element to demonstrate compliance with the requirements set out in paragraph 1 of this article.

4. The controller and the processor shall take measures to ensure that any person acting under the authority of the controller or the processor and having access to personal data only processes such data on instructions from the controller, unless required to do so by Union or Member State law."

III

Legitimacy of processing

For its part, Article 6.1 of the GDPR establishes the following:

"Processing shall be lawful only if at least one of the following applies:

- a) the data subject has given consent to the processing of their personal data for one or more specific purposes;
- b) processing is necessary for the performance of a contract to which the data subject is party or in order to take steps at the request of the data subject prior to entering into a contract;
- c) processing is necessary for compliance with a legal obligation to which the controller is subject;

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5/6

- d) the processing is necessary to protect the vital interests of the data subject or another natural person;

e) the processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller;

f) the processing is necessary for the purposes of legitimate interests pursued by the data controller or by a third party, provided that such interests do not override the interests or the fundamental rights and freedoms of the data subject which require the protection of personal data, particularly when the data subject is a child.

The provisions of paragraph f) of the first paragraph shall not apply to processing carried out by public authorities in the exercise of their functions.

IV

Conclusion

The claimant states that, without their participation or consent, a third party used their personal data to carry out the contracting of a loan, as well as the opening of an associated current account.

The entity being complained against has provided the documentation that accompanied the contracts subject to the complaint, which took place in 2018; it informed that the installments were paid until the moment the payment claim was made by the entity being complained against; as well as accompanying a letter from the OMIC requesting the Bank of Spain, dated May 5, 2022, to archive the proceedings since, by the entity being complained against, it had been resolved satisfactorily in favor of the claimant.

Therefore, based on the indications in the previous paragraphs, it can be considered that the processing of the claimant's data was carried out lawfully, in principle, since a contract had been formalized between the claimant and the entity being complained against. If the security measures applied by Bankia during the contracting (currently, the entity being complained against) were not adequate, the possible infringement would be time-barred since the contracting took place in 2018 and, being a serious infringement, it would have expired in 2020, prior to the filing of the complaint. In accordance with what has been stated, by the Director of the Spanish Agency for Data Protection, IT IS AGREED:

FIRST: TO ARCHIVE the present proceedings.

SECOND: TO NOTIFY this resolution to CAIXABANK, S.A., and to the claimant.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

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6/6

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and in paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

940-020323

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